Votes, Voters and Voter Lists: The Electoral Rolls in Barak Valley, Assam

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Abstract: Electoral rolls, or voter lists, as they are popularly called, are an integral part of the democratic setup of the Indian state. Along with their role in the electoral process, these lists have surfaced in the politics of Assam time and again. Especially since the 1970s, claims of non-citizens becoming enlisted voters, incorrect voter lists and the phenomenon of a 'clean' voter list have dominated electoral politics in Assam. The institutional acknowledgement of these issues culminated in the Assam Accord of 1985, establishing the Asom Gana Parishad (AGP), a political party founded with the goal of 'cleaning up' the electoral rolls 'polluted with foreign nationals'. Moreover, the Assam Agitation, between 1979 and 1985, changed the public discourse on the validity of electoral rolls and turned the rolls into a major focus of political contestation; this resulted in new terms of citizenship being set. However, following this shift, a prolonged era of politicisation of these rolls continued which has lasted to this day. Recently, discussions around the electoral rolls have come to popular and academic attention in light of the updating of the National Register of Citizens and the Citizenship Amendment Act. With the updating of the Register, the goal was to achieve a fair register of voters (or citizens) without outsiders. On the other hand, the Act seeks to modify the notion of Indian citizenship with respect to specific religious identities, thereby legitimising exclusion. As of now, both the processes remain on functionally unclear and stagnant grounds, but the process of using electoral rolls as a tool for both electoral gain and the organised exclusion of a section of the population continues to haunt popular perceptions. In this article, I analyse the major junctures at which the rolls have been politicised in the course of time and also put forward current popular perceptions of these rolls among the voters in Barak Valley, the predominantly Bengali speaking region in Assam.

INTRODUCTION

After a day of fieldwork in December 2017 in Silchar, Assam, I took an auto rickshaw back home. Casually chatting with the driver, I found out that, like many of the locals in the town, he was not particularly happy with the ongoing procedure of updating the National Register of Citizens (NRC hereafter).

Not only was his unhappiness quite blatant, but when asked about the validity of the process, the driver nonchalantly responded, 'if people like us, the voters, become marked as illegals from tomorrow, then shouldn't the ones enjoying power because of our votes also be marked illegal?'[1] This statement from a lower-middle-class Bengali speaker from Assam points to the prolonged history of the electoral rolls, or voter lists, as they are colloquially known, and their interconnection to politics in Assam. This statement made me think about what he possibly meant; my mind wandered about what the people actually thought of these lists and I wondered if they indeed thought in similar terms. A second question also sprung to me: why were these lists so important to them? Was there something I was missing? My doctoral research on the making of Bengali identity among the young Bengali speakers in Barak Valley[2] in Assam had brought me to Silchar – a town where I grew up and which is now the centre of my research. Silchar also happens to be the largest town in Barak Valley and the capital of the Cachar district.

Cut to 2019, when a village near Assam's border town Karimganj, not too far from Silchar – two hours by road – burned down. I read about the incident on the Internet version of a local Bengali daily newspaper that I frequently turn to. Surprisingly, instead of mourning the massive loss of property and most of all, roofs over their heads, the victims of the fire reported sighs of relief that they had saved copies of the voter lists from the fire, with their names or those of their relatives. This meant that even though they were now practically homeless and had a life of great uncertainty awaiting them, what 'saved' them, according to the victims, was the fact that they possessed documentary evidence of their relationship with the state. Even though they were 'homeless', they were not without proven paper ties to a 'homeland'. Voter lists (officially: electoral rolls) have of late occupied an immensely important position in the everyday lives of the residents of Assam. An inquiry about the possible origin of this hyper-prioritisation of these lists reveals a

[1] All Bengali quotes – from written sources and her interviews – are translated by the author.
[2] The three districts of Cachar, Hailakandi and Karimganj taken together are known as Barak Valley, as the river Barak and its tributaries cross the region. This region is populated by Bengali speakers, who form the ethnolinguistic majority, along with members of other ethnolinguistic groups such as the Assamese, Meitei, Bishnupriya Manipuris, Nagas, Nepalis and so on.

continued process of politicisation, exclusion and inclusion which has led to the writing of this article.[3]

Since the late 1970s, inclusion in the electoral rolls has become an important symbol of citizenship in Assam, both at the state and district level, as well as being a tool to control the narrative of Indian citizenship in Northeast India. In more recent times, the issue of 'cleaning' the electoral rolls and deleting the names of suspected illegals began to be discussed when, in 2014, the Supreme Court of India ordered the Government of Assam to update the 1951 NRC, in response to a petition filed by Sarbananda Sonowal, who became the Chief Minister of Assam in the same year. Beginning in 2014, the year of the general elections, and continuing even after the subsequent elections in 2019, the electoral rolls assumed great importance in the politics of Assam, in a manner uncannily reminiscent of the state's most politically turbulent times between 1979 and 1985.

In this article, I identify the major, decisive junctures of this politicisation process and try to understand what popular perceptions of the electoral rolls have developed in Barak Valley. In doing so, I explore the relationship between the state, its citizens, their identity and the electoral rolls through responses gathered during my visits to Silchar and Karimganj between 2017 and 2019.[4] I do not delve into the role of the voter lists in politics outside of Barak Valley, the main region of my doctoral research, as that would be beyond my expertise. Moreover, there is ample literature on the politics of identity and electoral politics in Assam, emphasising Brahmaputra Valley and other regions apart from Barak Valley (Misra 1999; Baruah 1986 & 1999; Dutta 2012; Hussain 2000; Srikanth 2000; Taher 1993; Weiner 1978 & 1983). However, the same cannot be said for Barak Valley. Until recently, this linguistically and religiously heterogeneous region within the Bengali language

[3] This article is a result of several field visits I made to Barak Valley in Assam in 2017, 2018 and 2019, and telephone interviews with respondents in 2020. While trying to access literature on the electoral rolls in Assam, I realised that there was very little to analyse. For that reason, the article might sometimes feel rather packed with information, but that is unavoidable owing to the lacuna in scholarly work on the subject. I am deeply indebted to Chitrankana Bhowmik and Soumili Dev for their constant support in helping organise my field visits, accessing respondents and providing additional relevant material.

[4] I do not have any responses from Hailkandi, the third major town of Barak Valley, as I had planned to gather these in 2020; the Covid-19 pandemic thwarted my plans, like those of many others.

continuum has remained underexplored in Bengal related academic pursuits. Barak Valley is also important for research as the Bengalis today form an ethnolinguistic minority in a region that is part of the Bengali language continuum. Despite this, in pursuit of my doctoral research, I experienced the absence of any comparable volume of scholarly work on Barak Valley and its relationship with the electoral rolls. With this article, I intend to add the case of Barak Valley to ongoing academic discussions on electoral rolls and voters' and citizens' relationship with them and in turn, to initiate a discourse on the politics of voting in that region.

HISTORICAL BACKGROUND

The history of conducting elections in India for the resident population goes back to the early 1900s. In the colonial period, the notion of popular representation was obviously very different to today. Prior to the Morley Minto Reforms of 1909, the native population's interests in policy matters received no institutional recognition. However, after India's independence in 1947, the then Constituent Assembly urged that elections be conducted according to universal adult franchise. After India formally became a republic in 1950, the first general elections in the country took place in the years 1951–1952. The country's first ever Election Commission was set up with Sukumar Sen, a civil servant, as its only member. The scale and mood of the first elections can be guessed from Shabdita Pareek's piece, where she describes India's first general elections as nothing less 'than a festival' (Pareek 2016). Nonetheless, one of the major hindrances faced by the organisers of this 'festival' was found to be the electoral rolls (ibid.). Although more than 173 million people out of the then population of 360 million were registered on the electoral roll, there were still inconsistencies. Issues and hurdles were expected to arise, but the problems caused by the largely illiterate electorate, which led to incorrectly enumerated voters and faulty or missing documentation, were rampant then and continue to be so even today, almost seventy years after.

ELECTORAL ROLLS AND VOICES FROM THE GROUND

It is government elections – at the local, federal and central levels – that safeguard the democratic foundations of the Indian Republic. First and foremost, deciding who can take part in these elections is the primary function of the electoral rolls or voter lists. Second, in many cases, the electoral rolls are considered to be valid documentary proof of citizenship in India, though this practice is dwindling in the context of Assam, as I will discuss further later in the article. Third, these rolls also serve as the primary document to prove that an individual's place of ordinary residence is within the Indian Territory. Responsibility to create and publish the electoral rolls falls centrally on the Election Commission of India,[5] on the respective federal state election commissions and chief electoral officers.

On the ground level, the task of verifying and updating these rolls falls on employees of the state governments. Quite often, the enumerators in the case of Assam are teachers employed by several primary and secondary schools, and their role as an enumerator in the process of updating the electoral list is a temporary one. This information was provided to me by Mr. Arijit Aditya, a renowned journalist from Silchar, who has written extensively on local issues based on years of field observations. This trend was also noted by many of the other respondents, who reported either being interviewed by one such school teacher as part of the voter list updating process, having served as an enumerator themselves (if they held the job of a school teacher) or knowing someone who did. The process of counting eligible voters and subsequently updating the voter lists continues to be completed with a door-to-door physical verification approach. Even though, in recent years, the publication of the draft and final versions of the rolls, as well as the filing of claims and objections, can be accessed online, a large part of the process of being placed on these rolls still depends on the enumerators' visits to the houses listed under a particular constituency.

Additionally, for a brief period in 2015, the Election Commission launched the nationwide '[…] National Electoral Roll Purification and Authentication Programme (NERPAP) from March to August with the objective of producing

[5] See the website of the Election Commission of India (https://eci.gov.in/electoral-roll/electoral-roll/) for more information on the function of the electoral rolls.

an errorless, authenticated electoral roll. […] During this programme, the electors were offered extended facilities: web services for online registration or the chance to call "1950", a toll–free number at state call centres, to discover the status of their applications for enrolment, correct/modify or delete entries in/from electoral roll or make other related queries' (Election Commission of India 2016: 10). However, at the lowest rung of the pyramid of India's electoral set-up lie the huge numbers of enumerators or, as they are officially known, Booth Level Officers (BLOs hereafter), who perform the initial tasks of voter registration and list updating on the ground.

But, according to one of my interviewees, a female insurance employee who also served as the presiding polling officer in 2014 and in 2019 in Barak Valley, the BLOs do not seem to perform their tasks properly. Speaking from her personal experience, she mentions one of her acquaintances who passed away in 2010 or 2011. Although several appeals have been made to the BLOs with ample documentary evidence proving the aforementioned person's death, his name remained on the voter lists in 2014 and 2019. In this context, she asks, 'how can one accept documents which are based on the voter lists? Given the current resurgence of the importance of voter lists and their role in proving citizenship for people in Barak Valley, how can one accept such faulty voter lists as the basis of facts?'

I also spoke to a number of other people in Silchar and Karimganj who had, in varying capacities, fulfilled election duties during the elections in 2014 and 2019. In contrast to the first respondent, who rejects the infallibility of the voter lists, a male interviewee from Silchar has a different view. According to him, having served as a presiding officer in the elections in 2019, mistakes in voter lists have been rectified over time, though the lists are not yet 100% flawless. On the other hand, he points out that, in his experience, the voter card[6] contains more mistakes than the voter list on average. Another respondent, a man from Karimganj, mentions that on the two occasions that he served as an election officer, he 'found that the electoral rolls are almost

[6] The voter identity card issued by the Election Commission of India is an identity document for adult citizens of India who have reached the age of 18. It also serves as proof of identity for Indian citizens to cast their ballot in the elections. It provides proof of the holder's general identity, address and age and is also known as the Electoral Photo Identity Card (EPIC).

correct'. However, whatever the accuracy of the electoral rolls, they are considered to be of utmost importance to the voting process by all the respondents. Another interviewee from Karimganj went on to call the voter list the 'most important document in a democratic country', in order to emphasise the centrality of a foolproof voter list in the journey of an Indian citizen.

Although everyone I spoke to agrees that mistakes remain in electoral rolls to various degrees, election workers disagree on what kinds of mistakes are commonly found in the voter lists. Four of the seven election workers I spoke to in detail mentioned mistakes with given names and surnames as common occurrences. Others pointed out mistakes regarding the holding number, address, birthdate and so on. But there are other methods of verifying a voter's identity apart from the voter list and the voter identity card (which eases the polling process). For instance, an app was used to verify the identity of voters who, on the day of voting, did not carry with them any photographic identity documents as approved by the Election Commission. Furthermore, one election worker I spoke to mentioned the presence of representatives of the contesting political parties inside the polling station; they also help the polling officer identify the voter. Another election worker who served during elections in a rural centre shared his experiences with me: 'Nowadays, each voter has an EPIC [Electoral Photo Identity Card]. One of the polling officers in a polling station is entrusted with the responsibility to match the photo with the electoral roll. Further, VDPs [Village Defence Party, i.e., a volunteer group comprised of local people] are deployed in the polling stations, to assist polling officers in case of identification of voters who do not have EPIC. *Gāobuṛhās* [heads of the villages] are also attached officially in a polling station for such help.'

As attested by the election workers, there are multiple ways and people involved in ensuring the voters' identity. They need to be either recognised by local political representatives, offer evidence through accepted paper trails such as the voter ID, Aadhaar (national ID), passport, driving license, etc., or be recognised by the Booth App that the polling staff use to verify the voters' identity. Why, in this case, despite so many layers of verification and an emphasis on corrected electoral lists, are the names of so called 'foreigners' and 'illegal migrants' included in the electoral rolls? Why are the electoral rolls still not free from 'doubtful voters'? Before getting into who these

doubtful voters are, I will discuss how the abovementioned problem is interrelated with inherent features of bureaucracy in the region, and how inclusion and exclusion in these rolls are often manufactured by manufacturing identities on paper.

MAKING IT INTO THE ELECTORAL ROLLS: BUREAUCRACY AND DOCUMENTS

To understand the status of documents, such as the voter lists, in society and also the relationship between the citizens and these documents, postcolonial India's obsession with bureaucracy and documents in the context of its democratic practice needs to be discussed. This feature has been aptly captured by the Dutch photographer Jan Banning. Over the years, mainly from 2008 to 2016, Banning shot various scenes from Indian bureaucratic scenarios and presented them in his book and travelling exhibition cheekily titled *Bureaucratics* (Banning 2008). This brilliant photo series not only captures the bureaucrat in his or her natural habitat, but also displays the central role of papers, in different shapes, sizes or colours, amidst a certain chaos within the hierarchies.

One of the photographs which caught my eye shows a bureaucratic officer at his work desk, with his hands folded on top of a file on his table.[7] On the wall, there is a window, between the broken panes of which one can see peeking the curious eyes of men who seem to be subjects of the state, separated from the papers by a wall and a few iron bars. This photograph seems to be a representation of the distance that subjects must keep from the state, so as to be 'in order'. Along with other determining factors, class plays a major role in determining how far from the state citizens find themselves to be located in contemporary India. In the case of Barak Valley in Assam, I observed the vitality of this aspect of bureaucracy, the extent of absolute dependency on documents and its relationship to socioeconomic identity. But let us first understand what the purpose of a document is under the citizenship regime, and thus automatically in identity making. Kamal Sadiq, in his book *Paper Citizens,* explores the link between documents and citizenship, and says:

[7] I refer here to the photo titled "India, bureaucracy, Bihar, 2003. India-21/2003" on Jan Banning's website (<https://www.janbanning.com/gallery/bureaucratics/>).

> [D]ocuments have come to embody individual identity in developing countries. The documentation of individual identity is part of a larger infrastructure of citizenship meant to identify members of the polity, thus creating a "citizenship from above" – from the state.
> (Sadiq 2009: 102)

Entering the polity at the correct stage in life is a crucial point that needs attention. Beginning with the birth certificate, there are a number of documents which are used by the bureaucratic state to distinguish its citizens from foreigners. Depending on the possession of these distinguishing documents, a person can or cannot be deemed a citizen of that state. The earliest document that ensures sufficient negotiating potential over a person's claim to citizenship is the certificate of birth. In South Asia, irrespective of the entry and exit of the colonial rulers, the practice of legally registering the birth of a child has been a practice marred with considerable discrepancies. Even though Article 7 of the 1989 United Nations Convention on the Rights of the Child (CRC) ascribes every child the right to be registered at birth (UNICEF 2005: 1), the birth certificate is important but not mandatory in contemporary India to enter the state's infrastructure, e.g., the education (Sadiq 2009: 80) or health system. This is compounded by the commonplace practice of giving birth at home, away from the clutches of the state medical agencies, and the fact that low rates of literacy and awareness do not do much to ensure the mass registration of births.

This complex has come to influence, in turn, the discrepant nature of the electoral rolls (as pointed out by the electoral workers I interviewed), as discrepancies often occur in probable dates and places of birth, along with the names of children. For instance, during my field interactions, many interviewees admitted, almost with nonchalance, to having discrepant information on their birth certificates, which offers further documentary support for the plausibility of false information being recorded in the electoral rolls. Some of them also mentioned that rectifying these mistakes was 'too troublesome' for them. On the other hand, forged documents such as ration cards or birth certificates are easily available in the illegal markets in India, making illegal access to citizenship documents not too difficult (Sadiq 2009: 122ff.) for outsiders, but a matter of mere economic power.

In my field interviews, one of the two recent immigrants[8] from Bangladesh to Assam whom I interviewed admitted to possessing a ration card issued by the Government of India even before she had entered India. She came to Silchar[9] and found work as a domestic help[10]. It was not hard for her to get on the voter list or open a bank account as she had already 'bought' a ration card. On further pressing, she revealed that there is a network comprising illegal immigrants residing in Assam, local middlemen and aspiring immigrants on the other side of the barbed fences. The local middlemen do not only include low level players such as unorganised labourers in the border area, border security force personnel or local police; they even include bigger political leaders, too. I found that local authorities were not only studiously ignoring illegal immigration, but also carefully controlling the kind of people to be admitted to India. Most members of these networks, as I observed, were Hindus, and the level of entry within the citizenship system is decided depending on the amount of cash an aspiring immigrant is willing to spend.

I visited a certain neighbourhood in Silchar (*Dāsˈpārā* to other locals) known to be built by so called illegally immigrated Bangladeshis, but nobody I spoke to admitted to this claim on my visit. These 'ghettoes' of supposed immigrants – whose residents are mostly lower caste Hindus – are, according to the last elections, strong political voter strongholds of the Hindu right. One of my respondents described how he was actively involved in campaigning in these neighbourhoods during the 2014 elections, urging people to vote in favour of a particular party that promised them legitimate residence, if not citizenship, on the basis of their religion as an after effect of the newly passed CAA. This respondent refuses to be named, but associates himself with a

[8] The person in question is 52 years old, female, Hindu, belonging to the Kaibarta caste. Due to ethical considerations and the lack of her consent to using the name, I have withheld it. However, she consented to my using the information she provided, given the fact that it could not be used to jeopardise her position.

[9] The Citizenship Amendment Bill (CAB) was proposed at the Lok Sabha, the Indian lower house, in 2016, to amend the existing Citizenship of India Act, 1955, which was later passed in the Parliament, after which it came to be known as the Citizenship Amendment Act (CAA), 2019. This act decrees that persons from Afghanistan, Pakistan and Bangladesh residing in India, belonging to Hindu, Jain, Buddhist, Christian, Parsi or Sikh communities are not to be treated as illegal migrants. For the complete act see: http://egazette.nic.in/WriteReadData/2019/214646.pdf.

[10] She did not mention when, as that would further jeopardise her claim over Indian citizenship in the light of the new Citizenship Amendment Bill, 2016.

prominent Hindu organisation in the region, which hints at the complicities of formal organisations and institutions in maintaining these chains of clientelism. In this context of existing immigrant networks, Sadiq looks at similar scenarios and defines how 'documentary citizenship' comes to be (Sadiq 2009: 102), something that I see happening in Barak Valley too.

Along with the certificate of birth, another aspect of the documentary regime in India that is often overlooked is the privilege that comes with being able to provide documentary evidence of an address of residence. Growing up in Silchar in the 1990s, I remember our house not having a specific house number. Because of the relatively small nature of the town, it was assumed that houses did not need a number and could be identified just by the name of the street (which was also not very long). It was much later, in the mid to late 2000s, that the local municipality started assigning numbers to houses for ease of access. However, the fact that we lived in an unnumbered house on a street did not impact our postal packages; we got our passports and documents with mostly correct particulars and people could find their way to our house for dinner with no difficulty. But that was primarily because our neighbourhood was small and our family privileged, well known and socioeconomically elite.

This is not the case for hundreds and thousands of people who have been living in Barak Valley for years in both unnumbered and numbered houses, but perhaps still feeling the lack of the privilege that comes with possessing documentary evidence of their residential address. Not only this: for a large section of the population living in a region that is highly prone to floods and torrential rain, preserving documents is the last concern for many. I remember as a child how both our household helps – Nirmalāmāsi and Tarumāsi – used to pack all their belongings every monsoon and come to live with us in our house along with their families. Needless to say, their makeshift houses made out of tarpaulin and/or tin sheets would invariably wash away with the rains. These same two people took an active part in discussions over whom to vote for during the elections, and I vividly remember my Communist grandmother sketching a hammer and sickle trying very hard to win their votes in favour of her favourite candidate. Nirmalāmāsi and Tarumāsi were voters, like many others in Barak Valley, with a place of 'ordinary residence' that is washed away by the floods every time, although they possess an offi-

cial address on their respective voter cards. Voters such as them would frequently register a neighbour's house or a local grocery store as the permanent contact address, as there would be less risk of a *pākā* house being torn down by the floods. This trend has also been noted by Tarangini Sriraman in her study on the slums in New Delhi (Sriraman 2018: 166). These, by contrast, were legal citizens of India with inadequate means to possess a durable place of ordinary residence, not recent illegal entrants to India from Bangladesh.

There is no doubt that illegal immigrants from Bangladesh to Barak Valley have permeated into the local polity; all the parties involved have a vested interest in their gaining membership within the polity. However, through my observations, I discovered that, as most of my respondents pointed out, Bengali speaking Hindus crossed over the borders to India illegally more frequently than Muslims. The added bait of the 'Hindu Rāṣṭra' (common "Hindu nation"), as propagated by the Bharatiya Janata Party (BJP hereafter), which is today in power on the local, state and national level, has contributed further to this. The Citizenship Amendment Act of 2019 has also added fuel to the fire and will be discussed later. In my understanding, separating the illegal immigration factor from a particular religious group could be a means of attempting to manipulate the demographic character of the electorate. This not only disturbs the natural communal balance but creates a clientelist political order at the micro level. The current political party in power plays a big role in maintaining this status quo (Gillan 2002).

However, at the macro level, the state finds it increasingly harder to distinguish between legal citizens and illegal citizens because of the way geopolitical borders run between India and Bangladesh (Sadiq 2009: 108). On the other hand, we need to ask: Why do a group of people willingly migrate to another country? What is the motive or attraction behind this trend? Is it merely the attraction of membership in a supposedly 'better state'? Or is it the lucrative chance of being counted as a member of the majority, the Hindus, in India and not a minority in Bangladesh? Scholars have often attributed the large-scale illegal immigration from Bangladesh to India to a variety of reasons. Some blame it on the search for socioeconomic advancement (Lin and Paul 1995: 4–6) or even environmental causes (Ahmed 1996: 142–144; Swain 1996: 189–204). However, the question that this paper asks focuses on the result of this complex conundrum on the psyche of the common man.

What is the function of the electoral rolls in maintaining this status quo? What is it that makes these rolls such an integral part of everyday life in Assam even for those who are completely new to this polity? A look back at Assam's history of voting and classification of the electorate is thus pertinent at this juncture.

MANIPULATING THE ELECTORATE OF ASSAM

After 1947, residents of Assam participated in the first general elections of 1951–52 and witnessed its first federal elections, also in 1952. It was also in 1951 that the first NRC was compiled. The purpose of the first ever NRC was to outline the number of households that fell within the newly formed contours of the sovereign Indian state. It was also its purpose to count the residents to ease preparations for the first census, also conducted in 1951, and the subsequent electoral rolls. During the enumeration process for the first census, problems of categorising the population vis à vis identity politics started to show, marking the beginning of Assam's relationship with politics of language, religion and numbers for decades to come.

The 1951 Census of India, which was hailed as highly fantastical by many[11] owing to its grossly faulty estimates of Bengali and Assamese speakers in Assam, has its own story to tell in this regard. It must be noted here that the 1951 Census had considerable influence on its successors, doing very little to depoliticise the recording of data, and often obfuscating the public narrative on the number and proportion of Bengalis (and *de facto*, illegal Bengalis).

[11] Mr R. B. Vaghaiwalla, the Superintendent of census operations in Assam in 1951, noted gross violations of procedure and the tweaking of findings owing to the falsification of linguistic records in his report. This report by Mr Vaghaiwalla has since been discussed by many scholars, notably in the works of Sujit Choudhury (1986, 2006 & 2007), Nabanipa Bhattacharjee (2013a & 2013b), Sukalpa Bhattacharjee (2006) and Anindita Dasgupta (2008).

Table 1: Census data and linguistic demography of Assam (in percentage) (Source: Government of India 1957: 413f).

Language	1931	1951
Assamese	31.4	56.7
Bengali	26.8	16.5
Hindi	7.6	3.8
Others	11.1	6.47

Table 1 shows the recorded percentages of Assamese, Bengali and Hindi speakers along with speakers of other languages in Assam, as per the 1931 and 1951 Census data. It is well known that Bengalis migrated to Assam, albeit in varying numbers, as a consequence of the impending Partition and bouts of communal violence. The fact that the Partition of 1947 simply pushed this movement of Bengalis to higher rates is also noted by some scholars, such as K. M. Sharma. He persuasively notes the possible justification for this movement:

> Between 1931 and partition, there was a further influx of Muslims from East Bengal and this was specially encouraged by the ministry headed by Saadulla which administered Assam after 1937. At the time of partition we would also expect a steep rise in the Bengali speaking part of the population as lakhs of Hindus from East Pakistan fled into various parts of India, especially into West Bengal, Tripura and Assam. During and after the 1950 riots (Hindu-Muslim) all over India and East Pakistan, there was another steep rise in the refugee influx. (Sharma 1980: 1322)

Despite there being many logical explanations for the increasing number of Bengali speakers in Assam, the numbers mentioned in the 1951 Census tell a different story. Apart from Assamese speakers, no other linguistic group grew in size. The cause given in the Census of 1951 itself is that certain groups of people had been coerced into declaring Assamese as their mother tongue, even though their knowledge of the Assamese language was inadequate (Government of India 1957: 414). Not only did the number of Assamese speakers include a lot of Bengali Muslims who declared Assamese as their

mother tongue, faced by threats to their livelihood and existence from the aggressive Assamese nationalism (Weiner 1978: 124), but some linguistic groups who did not agree to being listed as Assamese speakers were also recorded as speaking the language. The then state government categorically refused to acknowledge the smaller languages that existed in Assam and manoeuvred them into forming the corpus of the Assamese speaking population. This fallacious action is seen to be noted even in the same census document of 1951 by Mr Vaghaiwalla, the Superintendent of census operations in Assam (Government of India 1957). The problem of wrongly estimating the design of the population of Assam did not stop with the 1951 Census itself. Instead, it was the rapidly changing demographic design of Assam that engendered an atmosphere of instability and violence in the 1970s – especially as an aftermath of the Bangladesh Liberation War in 1971 and its impending bouts of migration to India – at the heart of which was the 'insider outsider' quarrel.

Table 2: Linguistic Profile of Assam, 1911–2011
(Source: Miśra 2018: 4).

Considering Assam's contemporary political geography; all figures in lakhs (one hundred thousand)				
Census	**Assamese speakers**	**Bengali speakers**	**Others**	**Total population**
1911	8.35	17.58	12.56	38.49
1931	17.47	14.90	23.24	55.61
1951	49.71	17.17	13.41	80.29
1971	89.05	28.82	28.38	146.25
1991	129.58	48.56	46.00	224.14
2011	150.96	90.24	70.86	312.06

Table 2 illustrates how, between the years 1951 and 1971, the recorded number of Assamese speakers almost doubled – with little or no connection with the average growth potential of the rest of the population. On the other hand, the number of Bengali speakers did not increase proportionately. This could be understood as a highly fallacious representation, keeping in mind that this was the very same period of unwarranted migration of Bengali

speakers from East Pakistan and the influx of migrants during the Bangladesh Liberation War. Moreover, it must be noted here that between 1951 and 1971 the territory of Assam changed drastically as the new states of Meghalaya, Mizoram and Arunachal Pradesh broke away from it. These regions were also home to a large number of Assamese speakers. The question that now arises is: Why and how did these numbers then come into being?

A large section of the originally Bengali speaking Muslim population – most of whom were agricultural labourers on the *car*s (marshy lands) of Assam – were coerced into declaring Assamese as their mother tongue for the 1971 Census, which inflated the percentage of Assamese speakers from 31.49% in 1931 to a colossal 60.89% in 1971 (Āditya 2018: 8) and manipulated the linguistic nature of the electorate. The true number of Bengali speakers was underreported while the Assamese population was overreported. This section of the population coerced into accepting Assamese as their official mother tongue has come to be known as the *Na–Asamiyā* or the "new(ly) Assamese". Between 1960 and the early 1970s, a prolonged bout of geopolitical fragmentation on the basis of linguistic self-determination in Assam took place which further changed the political and demographic contours of Assam drastically. However, it was the by-elections of Assam's Mangaldoi constituency that ushered in the phase of placing unprecedented levels of political importance on the voter lists in Assam.

MANGALDOI BY-ELECTIONS: WHERE IT ALL STARTED

In Assam, discussions and rumours about the mass inclusion of non-citizens in the electoral rolls reached its peak post 1971, specifically as the task of updating the rolls began. The narrative that illegal Bangladeshi immigrants had crept into the electoral rolls – a space strictly restricted to legitimate citizens – gained impetus when the All Assam Students' Union (AASU hereafter) took up the cause and launched a fierce campaign to cleanse the rolls of these non-citizens, disenfranchise these aliens and demand their detention and subsequent deportation (Barooah Pisharoty 2019). During these developments, the sitting Member of Parliament (MP) from the Mangaldoi Lok Sabha constituency, Hiralal Patwari, passed away in 1978, requiring by-elections to be held. When the electoral rolls of Mangaldoi were updated, it was noted by government officials that the number of registered voters had risen

dramatically and of these, around 45,000 voters were non-citizens (Chadha 2005: 238; Sinha 2007: 162).

AASU activists took this cause further, protesting against this recent inclusion of the illegal immigrants within the rolls and demanding that the by-election be called off until the rolls had been cleansed and the non-citizens identified and deported. This set in motion demands for the 'detection, deletion and deportation' of non–citizens who had found their way into the electoral rolls (Gupta 2019). The agitations gained popularity and soon turned extremely violent, as a consequence of which the by-election was called off and subsequently, the process of updating the national census was also aborted in the state of Assam.

Between the years 1979 and 1985, Assam witnessed violent clashes between supporters of the AASU and members of the population who the AASU considered to be in favour of illegal immigrants. Members of political and social organisations who came out against the AASU's stance were also allegedly killed by AASU activists (Chopra 1982). The extent of violence reached its peak when, on the 18th of February 1983, more than 2,000 suspected illegal immigrants (unofficial numbers are about 10,000) were killed across 14 villages in the Nagaon district of Assam (Kimura 2013). These killings are often described as a direct consequence of the decision by the national government, then under Indira Gandhi, to hold state elections in Assam and allow the refugees from war-torn, newly formed Bangladesh to vote in the state elections of 1983 (Weiner 1983: 280).

1983 ASSAM ASSEMBLY ELECTIONS: ADDING FUEL TO THE FIRE

In 1979, fresh elections became the need of the hour. Assam, which was almost under the control of the agitating activists at that time (Dasgupta and Guha 1985), became a hotspot for clashes between agitators and the common people. As the agitation grew more aggressive, the elections could not be conducted in 10 out of 14 constituencies, despite the electoral rolls having undergone scrutiny and rectification. In December 1979, a corrected roll was published, but the changes bore little relation to the protesters' complaints (Sinha 2007: 162). In an attempt to restore law and order, multiple talks were initiated between the government and the agitators, but with no clear success.

In 1982, it was finally time for the State Legislative Assembly to be dissolved, which meant that the period of president's rule[12] was also nearing its end. Some oppositional forces went so far as to demand a constitutional amendment enabling the president's rule to be extended and elections to the assembly avoided for as long as possible. However, the Supreme Court ruled that the 1979 electoral rolls were valid for the elections which would now take place in 1983. This sparked another charged round of organised protests from the AASU, demanding that the poll be cancelled, and the elections completely boycotted. As noted by Dasgupta and Guha, the electoral process for the 1983 poll was chaotic and violent and created an atmosphere of fear among those against agitation (Dasgupta and Guha 1985: 844). Moral support for the public violence that ensued from the agitators' side came from various sections of society – citizens, bureaucrats who refused to follow the electoral code of conduct, leading mass media outlets, etc. As a consequence, the results of the polls met everyone's expectations, and there were very low voter turnouts. With cracks forming in the unity of the agitators, and the movement weakening due to further differences in demands, Congress succeeded in winning the support of the Assamese speakers.

Now that the other ethnic and ethnolinguistic minority groups started to express their dismay over the prevalent Assamese nationalism, it became easier to break the unity of the agitators. Early traces of this trend were also reflected in the regional variations of the results of the election (Dasgupta and Guha 1985). It was finally on 15 August 1985, actively pursued by the then Prime Minister Rajiv Gandhi, that the historic Assam Accord was signed between the Government of India and the agitating AASU, thus bringing an end to the Assam Agitation. Although some scholars view the Accord as a formal end to the agitations (Gosselink 1994; Baruah 1986), behind the façade of the Accord, the residents of Assam were classified within a new 'citizenship timeline' which disenfranchised a large section of the population. Thus, this was not much of a permanent solution, but marked the formalisation of citizenship politics in Assam with many scopes for future politicisation.

[12] According to Article 356 of the Indian Constitution, president's rule can be imposed in a federal state of India, whereupon the state government is suspended and the governing powers lie directly at the discretion of the President of India.

Additionally, the formalisation of 1971 as the cut-off year[13] now provided a demarcator of legitimate citizenship for the residents and the need to prove a lineage going back to pre 1971 Assam became one of the key factors behind the illegal document market. Misleading campaigns on the size of the so called 'non-citizen Bangladeshi' population were also noted, making the journey of the electoral rolls in the post 1985 period an important one.

ASSAM AFTER THE ACCORD: WHAT HAPPENED TO THE ELECTORAL ROLLS?

At the end of the agitation, a significant number of leading faces of the Assam Agitation formed a political party named Asom Gana Parishad (hereafter the AGP) in October 1985. Elections to the state assembly were due in December of the same year and the AGP fielded candidates. Sweeping the elections, securing 67 out of 126 seats, the AGP formed the government of Assam and Prafulla Kumar Mahanta, the student leader of the AASU, became Chief Minister. Voters for the AGP believed that finally the 'Bangladeshi' thorn would be removed from their side and a full revamp of the electoral rolls would now not be too distant. In reality, that was not quite what happened.

Electorally, Assam witnessed bouts of instability from the 1970s until the late 1980s. The instance of the Panchayat elections provides a good example in this regard. Between 1973 and 1992, no elections to any of the Panchayat (village council) bodies had taken place in Assam, meaning that the lowest strata of democracy had been at a standstill for almost two decades. Much of this was due to the controversy over what constituted an 'acceptable electoral roll' (Mathew 1995). Apart from this, issues that occupied attention in Assam politics were also gradually changing in the 1990s compared with the 1980s. Following the signing of the Assam Accord, the biggest electoral year for Assam was 1991. In 1991, elections to both the state legislative assembly and the national Lok Sabha elections were due to take place. However, there was no updating of the electoral rolls, hence the electoral rolls prepared in December of 1978 were used to conduct the 1991 elections.

My father was one of the voters from Silchar who was set to cast his first vote in 1991 but was denied his voting rights. Born in 1963, my father was

[13] As set by the Assam Accord of 1985, 1971 is regarded as the cut-off year for granting Indian citizenship to those having crossed over to India. More on this is elaborated in later sections.

seventeen years of age in 1978 and so could not vote for the 1991 elections, even though by then he had reached the age of twenty-eight and was married with a child on the way. The elections of 1991 followed the list of adult residents as entered in the voter lists of 1978, even though thirteen years had passed in between and a whole new generation had become of legitimate voting age. It will thus not be unrealistic to surmise that many young voters remained disenfranchised during this decisive period in the electoral history of Assam. It was finally in 1996, when the next general elections were held, that the electoral rolls were updated, and my father could exercise his right to vote. Almost two decades had passed and the young voters' grudges against the reluctant government in the state were starting to show.

Prior to this, Lok Sabha elections for the year 1989 could not be held in Assam owing to electoral abnormalities (Andersen 1990: 529). With the AGP turning soft on finding immediate remedies for the immigration problem, popular support started to wane and instead, the BJP benefited from this disillusionment. Promises of curbing illegal infiltration and detecting and deporting existing illegals started to be raised by the BJP, and it was in 1998 that the BJP gave their word to the public to renew the NRC, clean up the electoral rolls and offer identity cards to legal citizens. The 1990s were predominantly the time for the electoral rolls to rise to relevance once again. At times, there was mention of the 'burden' of illegal immigration from multiple political sides. Nevertheless, no constructive legislation, popular movement or social drive was noted during this period (Sarma 2014; Fernandes 2005). Rather, these were the years that rendered Assam virtually helpless in the face of extreme militant extremism, separatism and clashes between the Assamese and tribal groups, such as the Bodos. It was only much later, in 2005, when the Illegal Migrants (Determination by Tribunal) or IM (DT) Act of 1983 was repealed, that the immigration issue got a fresh political jumpstart.

'DOUBTING' THE ELECTORATE

In the public interest litigation case that was filed against the IM (DT) Act, there was mention of another crucial point in the history of politicised electoral rolls in Assam. As a consequence of the Assam Accord in 1985, through an amendment made to the Citizenship of India Act, 1955, a new section 6A was inserted. It set a cut-off date of 25 March 1971, one day before Bangladesh's liberation,

to determine the nature of people's immigration into the territory of Assam. Anyone entering Assam on or after 25 March 1971 without valid travel documents, visas or legal authority to do so from 'specified territories' (Bangladesh) is deemed illegal. A further subsection adds:

> [A]ll persons of Indian origin who came before the 1st day of January, 1966[14] to Assam from the specified territory […] and who have been ordinarily resident in Assam since the dates of their entry into Assam shall be deemed to be citizens of India as from the 1st day of January, 1966. Subject to the provisions of subsections (6) and (7), every person of Indian origin who (a) came to Assam on or after the 1st day of January, 1966 but before the 25th day of March, 1971 from the specified territory; and (b) has, since the date of his entry into Assam, been ordinarily resident in Assam; and (c) has been detected to be a foreigner, shall register himself in accordance with the rules made by the Central Government in this behalf under section 18 with such authority […] as may be specified in such rules and if his name is included in any electoral roll for any Assembly or Parliamentary constituency in force on the date of such detection, his name shall be deleted therefrom. […] A person registered under subsection (3) shall have, as from the date on which he has been detected to be a foreigner and till the expiry of a period of ten years from that date, the same rights and obligations as a citizen of India (including the right to obtain a passport under the Passports Act, 1967 (15 of 1967) and the obligations connected therewith), but shall not be entitled to have his name included in any electoral roll for any Assembly or Parliamentary constituency at any time before the expiry of the said period of ten years. (India Code 2020: 7)

As Walter Fernandes has rightly pointed out, '(t)he rest of India has the Foreigners' Act 1946 which puts the onus on the accused to prove his/her Indian nationality. The IMDT defines foreigners as those who settled down in Assam after March 25, 1971 and puts the onus on the one who denounces a person of proving that he/she is a foreigner' (Fernandes 2005: 3237). This onus was

[14] This date was taken into consideration bearing in mind the preparation of electoral rolls for 1967, said two of my respondents. For the purpose of preparing the electoral rolls for the 1967 elections, the cut-off date of 1 January 1966 was set.

taken away from the accuser and was reinstated on the accused. This not only harmed the ongoing process of detection and trial of the alleged foreigners, but made the importance of documents, especially those that proved land and blood linkages, extremely vital. In the case of illiterate, rural residents of Assam who often did not possess land or regularly follow methods of registering births and/or deaths, this scrapping of IM (DT) became their immediate enemy.

This would then go on to have severe consequences in 2014, when the Supreme Court instructed the Government of Assam to update the NRC of 1951. Following this, work began on updating the National Register of Citizens of 1951, opening up new avenues for politicising the electoral rolls further. Also, as mentioned in the abovementioned section of the act, residents of Assam who had entered the territory from Bangladesh between 1 January 1966 and 25 March 1971 were not included in the electoral rolls *prima facie*. Even though they theoretically enjoyed all the other privileges of an ordinary Indian citizen, they were barred from exercising their voting rights for a period of ten years. The introduction of this section pioneered an era of disenfranchising people depending on their time of arrival. This can be seen from the unique case of the 'doubtful' or 'D-voters' in Assam that ensued in the late 1990s.

After 1996, the biggest revamp of the electoral lists began in 1997 when the Election Commission of India instructed the Government of Assam to clean up the electoral rolls and identify and remove non-citizens. As a result, an intensive cleaning up of the rolls began in order to enlist only the 'genuine' citizens. During this process, it was noted that many enlisted persons could not provide sufficient evidence of their citizenship. These enlisted persons were then marked as 'D' or 'doubtful' voters but included in the rolls nonetheless. Along with them, those persons who were absent from home during the door-to-door survey were also marked as 'D'. After the manoeuvre was completed, the Election Commission of India declared around 370,000 persons (Bhattacharya 2005) as 'doubtful voters'.

In an article published in *The Telegraph*, Rajeev Bhattacharya, a renowned journalist from Assam, noted the sudden disappearance of a large number of D-voters in the electoral rolls of 2004, as compared to its counterpart from seven years previously. While the draft rolls that were to form the electoral base in the then upcoming 2006 Assembly elections were being prepared,

Bhattacharya noted that a large number of the previously reported D-voters were now unaccounted for. He noted:

> The general impression was that the commission had detected 3.7 lakh[15] "D" voters during the intensive revision of electoral rolls in 1997. But only 1,99,631 [sic] such cases were referred to the tribunals for verification. After investigation, 3,686 voters were found to be foreigners and their names were struck off the list. (Bhattacharya 2005)

Even though the number of proven foreigners having gained access to the electoral rolls was around 3,686 – a number that is relatively small compared to the general assumption of 370,000 – the fear of exclusion through the 'D' phenomena became infectious; so much so that numerous cases of absconding D-voters became unremarkable. Furthermore, cases in which D-voters who were declared foreigners by one of the 36 foreigners' tribunals in the state were forcibly pushed back into Bangladeshi territory by the Indian border forces were also not unheard of (Saha 2018). At the same time, to stop the marked 'D-voters' from absconding, those whose cases were under trial in the tribunals were to be sent to detention camps until the cases were dealt with.

This judgement of 2004 created new ruckus, as at that time there were only two functioning detention camps. Once those two had been overfilled with detainees, the new location for the detained was then the jails, where the treatment offered to them was nothing but inhumane (Āditya 2018). In totality, the dread of the 'D voter' continued to haunt the electorate in Assam even after the elections in 2011. Moreover, since 2014, with the renewed nationwide focus on electoral rolls, the NRC, new amendment to the Citizenship of India Act and overall status of citizenship in Assam, the many instances of exclusion, harassment of suspected foreigners and politicisation of the rolls have been given fresh fuel. In this regard, I would like to return to my field interactions and the comments by a voter from Silchar. He recollected one specific incident:

[15] One lakh is 100,000 in Indian English. Accordingly, ten lakh is the Indian equivalent to a million.

> In case of Assam, it is often seen that some people are marked as (D) against their names. These D-voters cannot take part in electoral process. They are valid citizens but taking the advantages of certain provisions of Assam Accord 1985, anybody can register complaint against anybody [often driven by personal rivalry] claiming the later as an illegal migrant or foreigner. In many cases, the accused even do not know about the complaint against him/her; he or she come to know that he/she is marked as 'D' only when she/he enters the polling station to caste vote [sic].

To ease this situation, over the period of 2014 to 2019, many strategies were undertaken by the government as an attempt firstly to end the speculations regarding the size of the legitimate electorate, and secondly to set parameters of inclusion and exclusion within the electoral rolls once and for all.

2014 TO 2019: SOLUTIONS AND POLITICISATIONS

In 2014, the Supreme Court of India directed the government of Assam to begin the process of updating the 1951 NRC, following a public interest litigation case filed by Sarbananda Sonowal. The purpose of the original NRC was to count the number of households in India, but the current updating process in Assam is of a different nature. It not only records and counts the number of households, but also records the number of people who are not legitimate citizens of Assam, following a detailed process of application and verification. Being registered on the NRC is indeed a long process. On the process of application for inclusion in the NRC, Rafiul Ahmed rightly notes:

> First, applicants have to identify themselves or their ancestors in the 'legacy data' — the master roll of names of households based on census returns, to prove their claim for inclusion in the register. In order to prove that a person's relatives had lived in the state before the cut-off date they need to submit supportive evidence of their name appearing in the pre 1971 electoral rolls or the 1951 NRC. Second, the applicants are required to submit 'link documents' certifying their relationship with the said relative. This entire bureaucratic probe makes a massive demand on the part of the applicants for submission of documents including copies of the

> 1951 NRC; electoral rolls before 1971; refugee registration certificate; permanent residential certificate or citizenship certificate; tenancy records; ration cards and so on, to establish one's citizenship status beyond the reasonable doubt of NRC officials. (Ahmed 2018)

Along with this, the sudden need to procure, protect and produce documents which are admissible in court as proof of inclusion in genealogical 'legacy data' brings to the foreground the importance of social, economic and political capital in gaining access to citizenship. One of the major documents for establishing this proof was the electoral rolls.

During my field visit, I noticed that many people had submitted copies of the electoral rolls from 1952, 1957, 1962, 1967 and 1971 as valid proof of their Indian citizenship, as was evident from their names being included in the partial draft NRC, published on 31 December 2017. There were also many mishaps during this process, as applicants who did not possess the necessary documents often resorted to illegal ways of obtaining documents establishing a link with the legacy data. For example, multiple applications linked with a person named 'Mohammad Akbar' were received by the officials, some of which were of a fraudulent nature. This 'Mohammad Akbar' had his name included in both the 1952 and the 1971 electoral rolls, proving his genuine Indian citizenship. However, taking advantage of the fact that 'Mohammad Akbar' is a common name among South Asian Muslims, many *dālāl* ("agents") tried to link persons related to a different 'Mohammad Akbar' using the legacy document of the original, real 'Mohammad Akbar'. This process 'by which illegal immigrants gain citizenship through the acquisition of fraudulent documents' is what Kamal Sadiq views as an integral part of the documentary citizenship regime in South Asia (Sadiq 2009: 102).

Because of the difficulty to distinguish between legal citizens and illegal citizens because of the way geopolitical borders run between India and Bangladesh (Sadiq 2009: 108), the agenda of preparing foolproof electoral rolls, and even the NRC, thus appears to be a farce. The aim of updating the NRC was to ensure that the confusion and controversy over the illegal immigrants creeping into the citizenship system was solved. It was also expected that, with the updating process now sorted, a realistic number could then be assigned to the illegal population residing in Assam. Moreover, a complete and updated NRC would not only honour the terms of the Assam Accord but also pave way

for further legislation on the fate of the illegal immigrants. However, none of those expectations has been fully satisfied, primarily because of the several strategies aimed at politicising the electoral rolls and the way the ruling forces have manipulated the illegal immigrant narrative in the last couple of years.

More or less at the same time the updating of the NRC began in 2014, the BJP – the party now at both central and state level – initiated talks of amending the Citizenship of India Act, 1955. In 2016, the BJP's Rajnath Singh presented the Citizenship (Amendment) Bill (CAB hereafter) in the Lok Sabha. This aimed not to treat people who were fleeing from Pakistan, Afghanistan and Bangladesh to India, and belonged to Hindu, Sikh, Jain, Christian, Parsi or Buddhist communities, as illegal migrants. In addition, these persons would be eligible for Indian citizenship through naturalisation after a registered stay of six years, instead of the usual eleven.[16] After prolonged debates, discussions and public demonstrations for and against this bill, it was passed into the legislature and became the Citizenship (Amendment) Act (CAA hereafter), 2019.

While all illegal migrants from Bangladesh, Hindus and Muslims alike, were considered 'foreigners', this new bill paves the way for 'foreign' Bengali Hindus to become citizens, undermining one of the main agendas of Assamese nationalism. This scenario presented a direct violation of the terms of the Accord and introduced an unforeseen religious character into the process of inclusion in the Indian citizenship regime. This bill and its subsequent passing into a binding act came at a time when Assam, and a large section of the country, was rife with disgruntlement against the NRC. Moreover, the public promises made by several leaders of the BJP to the people of Assam with regard to ridding Assam of *ghusʲpeṭhiẏe* (literally, in Hindi, "intruders") fall flat when placed in context of the CAB and CAA. The majority of the Assamese public, who had earlier demonstrated their support for the AGP-BJP coalition that formed the government in the state in 2014, now felt cheated.

Sonowal, the recent leader of the anti-foreigner crusade, has been caught between two tricky choices. First, the BJP's fixation on making India into a homeland for the Hindus – something that the CAA allows – is antithetical to the Assam Agitation's promises in the 1980s. The demands of cleaning out electoral rolls and the process of expelling foreigners become farcical as the

[16] For the complete bill see: https://www.prsindia.org/sites/default/files/bill_files/Citizenship_%28A%29_bill%2C_2016_0.pdf for details.

very notion of a 'foreigner' within the supposed 'Hindu Rāṣṭra' automatically includes a large section of these *ghusʲpeṭhiẏe*. Second, popular support for the NRC has also started to wane, as four million people were left out of the final list that was published in September 2019, much to the discomfort of certain BJP and AGP leaders who had earlier claimed the number of illegal immigrants residing in Assam to be anywhere between five and nine million, if not more.

In this context, one cannot overlook the fact that there has been no trustworthy statistical basis to determine the exact or approximate number of illegal immigrants in Assam. Even though different numbers have been concocted by different parties at various points in time, a recent RTI enquiry (under the Right to Information Act) revealed that even the authorities have no idea about the exact or even approximate size of the illegal population. While conducting my first visit to the field, I expected to return with an approximate number of illegal immigrants residing in Barak Valley (if not Assam), or at least an approximate estimate. However, no two persons I interacted with provided me with the same numbers. Most importantly, no one had any hard evidence to support the claims that they were making. Some persons I interviewed, depending on their ideological background, had very specific figures for me. Back in 2017, the spokesperson of the BJP gave me a speculated number for the Bengali speaking Muslims only, while remaining sketchy when asked about the number of illegal Hindu immigrants.

In conversation with Dipayan Chakraborty, President of the BJP's Silchar Mandal Committee,[17] I was given a stunning figure of three million Bengali Muslims in Assam. According to Chakraborty, three million Bengali Muslims residing here in Assam were illegal and needed to be expelled. He did not provide any number of legally residing Bengali Muslims. When asked about the number of illegal Hindus, Chakraborty simply refuted the possibility, citing the argument that Hindus can under no circumstances be deemed illegal in India, as it was what he called 'their homeland'. Chakraborty's argument about Hindus finding their legitimate homeland in India resonates with the foundational reasons given by Rajnath Singh while proposing the Citizenship

[17] According to BJP's party constitution, a "Mandal Committee" is something like an "area committee" that falls between the "District Committee" and "Gram or Village or Panchayat Committee". For the BJP constitution on the website of Election Commission of India see: https://eci.gov.in/files/file/4929-bharatiya-janata-party/.

Amendment Bill in the Lok Sabha in 2016. Again, Upamanyu Hazarika, founder of the Prabajan Virodhi Manch, stated that around twenty to twenty-five percent of Assam's total population were illegal immigrants (mostly Muslims) (Saberin 2017). If these figures are considered, it would mean that around six to eight million people, out of Assam's total population of 30.94 million, are illegal.[18]

Adding to this confusion, the deep-rooted, large scale reach of the forgery economy that the politicisation of citizenship has helped cultivate in Assam for decades made it even more difficult to say with surety that all four million excluded from the final NRC were truly illegal, or similarly, that all those included in the list were truly legitimate Indian voters. Journalist Arijit Aditya mentioned one of his friends, a Bengali speaker from the Hindu community who had come to India from Bangladesh via Tripura in 1979, with members of his family still living there. While the whole state was getting tense about procuring documents for NRC, Aditya mentions, his friend simply went to Agartala and purchased fake identity documents and a fake voter list with his name on it for 5000 Indian Rupees. He later found his name included in the final NRC. In this way, the demand for a 'clean roll' continues to be lost amidst the on-the-ground reality of the process itself.

These complex circumstances bring us to a summary of the actual importance that the electoral roll possesses in the current situation, and therefore turn our attention to what perceptions this repeated emphasis of the importance of voter lists have formed among the potential voters themselves.

ELECTORAL ROLLS THROUGH POPULAR PERCEPTION

During the course of my fieldwork in Silchar, I encountered a wide range of responses from the people, the majority of whom spoke Bengali as their first language. Depending on their political, religious, economic and other social circumstances, these responses varied from individual to individual, including in terms of what was discussed. The prolonged strategic and organised politicisation of the electoral rolls that I have discussed until now as being linked with Assam's political history culminates in a hyper-prioritisation of the electoral rolls, among other documents, by the residents of Assam, and

[18] According to the 2011 Census of India, the total population of Assam is 30.94 million.

specifically those who come from certain marginal sections of the society, economy or polity. The recently increased interest in the NRC and the CAA among scholars and activists has not included the position of the electoral rolls, as perceived and projected. In this section, I point out key excerpts of popular perspectives on this topic.

While discussing the elections, almost everyone I spoke to hinted, in some form or another, at the erroneous nature of the electoral rolls and admitted to the difficulties it often tends to entail. A young man whose landowning family in Borkhola, a town just outside of Silchar, had lived in the region for generations, spoke to me about his and his family's experience. On moving to the city later, his family had their records included in the electoral lists in Silchar and Borkhola as well. Despite making several attempts at deleting their names from the Borkhola list, his mother and *jeṭhi* (wife of father's elder brother) were both summoned by the foreigner's tribunal on grounds of being doubtful voters of the region. It took them multiple visits to the court and vehement campaigning to get out of this sticky situation.

But not every voter enjoys the same social capital. Arjit Aditya mentioned in his interview with me that most D-voters, in his experience, belong to the marginal groups of society. Mostly hailing from the *Namaśūdra* or *Kaibarta* caste or having a Muslim background, these D-voters also come from lower socioeconomic strata. Social capital is also linked to the gender of the voter: women counted as voters in both their marital and paternal homes are more susceptible to being termed D-voters than women registered under just one address. Often, the process of deleting names or correcting the changed surnames of female list members is of lower priority, as I understood during my field interactions, which leads to potential exclusion from the voter lists, if not erroneous inclusion that leads to being termed a 'D-voter'.

Some of my respondents who self-identified as belonging to the middle class demonstrated a sense of pride in being included in the electoral rolls. Their role as an active participant in keeping Indian democracy running made them proud. But at the same time, as a voter in Assam, almost everyone admitted to their bittersweet relationship with the roll, owing largely to the history it represented. Some reminisced about the 1970s and 1980s, as they had heard their parents' stories and feared what might happen to them if some new measures were introduced overnight by the state, as took place at that

time. I understood them to be referring to the Assam Accord, the repealing of the IMDT Act and the subsequent introduction of the D-voter category. However, the responses do not necessarily always reflect fear and worry. Some also expressed disappointment combined with pride and enthusiasm.

Speaking about the status of the electoral roll in his mind, Subhasish Choudhury, a young student identifying himself as a member of the Hindu Chhatra Sangha, said that he felt immense pride in being a voter. When asked about the precarious status of the rolls within the NRC structure, he said:

> Here the only thing that makes me sad is that this [voter ID] which the government has given us, my voting right, through which this government has come to power, is being rendered inadequate in proving my citizenship during the NRC. This is really a sad situation showing that my presence on the voter list is also not enough.

Even if it is not enough to prove citizenship, the voter card does guarantee the holder's right to elect a government. The voter card is proof that the holder's name is included in the rolls. But, like electoral rolls, forged voter IDs are also rampantly available in the market, as mentioned before.

When asked about her earliest voting experiences, Sumona Rahman Choudhury from Karimganj also expressed excitement at seeing her name on the list for the first time, as many of the other respondents did. But her excitement waned as soon as she found out that her vote had already been cast long before she could do it herself. But as she nears her 30s now, in her words, her relationship with the voter list is:

> […] almost like a one-sided love story, where no matter how much I love someone, the fate of this relationship hangs on the fact if the other person finds me worthy of being taken seriously. As if my whole identity is related to that one nod of the lover saying yes and including me in his life.

Another young journalist Taha Amin Mazumdar also recounted how a voter list immediately reminds him of funny spelling mistakes of people's names. The mistaken spelling of the voters' names is not just something that can be attributed to the enumerators' ability to note them down, but also reflects a cultural distancing of sorts, as Arijit Aditya pointed out. Due to the fact that members of two major religious communities, the Hindus and Muslims, can

cohabit in Assam without feeling the need to know in detail about the fundamentals of the respective 'other' way of life, there is often widespread ignorance among Hindus of the ways of a Muslim life and vice versa. Often, Aditya notes, local Muslims returning from Hajj[19] tend to add "Haji" as a prefix or first name of choice. Enumerators who are not aware of this tradition simply assume this is a misnomer and proceed with their tasks, thus opening future possibilities of confusion and even exclusion.

Apart from the respondents named here, there were also a few others who provided their thoughts on the importance of the voter lists in their lives, but I do not go into those details individually. Instead, I would rather point out a trend I noticed among all my respondents: not one of the respondents considered the voter list to be unimportant, or irrelevant to their daily life. When prodded on the cause of this prioritisation, nobody had any distinctly private or individual justification for it. Rather, they believed that the voter list is important to their individual lives because of the larger meaning it holds for the collective with which they associate themselves, and thus does not need to carry any essentially individualistic impact. All of my respondents acknowledged the special circumstances that they, as voters of Assam, find themselves in. According to them, that make their prioritisation, and often hyper-prioritisation, of these rolls nothing but obvious.

Even though the collective view which assigns the voter lists great importance is a common thread, what distinguishes popular perception from one person to the other depends on the specific socioeconomic identities of the respondents and, consequently, on their lived experiences. That is why the reason cited by a self-identified member of the Hindu Chhatra Sangh for prioritising the voter list differs drastically from that of a journalist working amidst the 'D-voters'. Like the majority of my respondents, both consider the voter list to be intrinsic to Indian democratic practices, agree to the fallacious nature of the list itself, and express disappointment about the process, but they do all of that for completely different reasons. This brings me to sum up my thoughts on the prolonged politicisation of the electoral rolls and resultant perceptions of them and argue that they play a 'double-layered' function.

[19] Hajj is the annual Islamic pilgrimage to the holy city of Mecca in Saudi Arabia and is one of the crucial duties and pillars of Islam.

CONCLUSION

This article focuses on the electoral rolls – an entity that has been otherwise ignored in the contemporary discussions on NRC and CAA – using first-hand field observations from Barak Valley, a region which is also under-represented among academic discussions. At a time when most scholarly attention on citizenship is limited to northern and western Assam, this article focuses on the mostly Bengali-speaking region of Barak Valley, which has also borne the brunt of the NRC, much like its northern and western counterparts. However, the history of the electoral rolls in Barak Valley is conjoined with that of the rest of Assam – and closer examination reveals a pattern, especially since the late 1970s.

First, the electoral rolls in Barak Valley have functioned as lucrative bait for those crossing over the borders. The existing networks involved in the forgery trade help maintain the lucrativeness, which in turn has also led to the electoral rolls being prioritised as a vital tool for gaining state recognition. That is why, using several methods such as subterfuge and forgery, non-citizens have tried to get themselves included in the Indian electoral rolls. In doing so, they also receive a diverse range of formal and informal support. As a matter of fact, I personally know of a few Bangladeshi Hindus residing in Sylhet, the district in Bangladesh bordering Barak Valley in India, who currently live in Bangladesh, but are in possession of Indian ration cards, such is the level of ease for foreigners to buy their way into the Indian documentary citizenship regime. Further, the fact that documents can be 'bought' means that the authorities related to the issuance of the documents may be to some extent aware of, if not complicit in, this 'buying and selling' of identities. The lack of sufficient ethnographic scholarly work on this[20] has made it difficult for me to draw on past cases and calls for more academic attention. However, my interactions reveal that, despite multiple phases of increased investment in smarter and updated border fencing techniques, the political leaders still complain of unbridled illegal immigration. This also hints at the role of the border security forces on both sides of the border. These fuzzy complicities of the state, informal *dālāl* circuit, border security forces, local

[20] There is a lack of ethnographic work based in Barak Valley or Assam, but similar ethnographic work has been done by Sahana Ghosh (Ghosh 2019) in the border regions in West Bengal and Kamal Sadiq (Sadiq 2009).

and national political leaders, and other vested interests make sure that the status of the electoral roll as an end to a successful journey across the border remains intact. Moreover, the various stakeholders play their parts in ensuring that, no matter what policies are passed by the legislature, this chain remains almost unbroken. So much so, that the fear of not being included in the voter lists (and consequently the NRC) has claimed the lives of sixty people (as of July 2019) (Mujibi 2020), with the first NRC-related suicide, by Arjun Namasudra, taking place in Silchar. Voter lists, which were originally intended to perform the task of identifying a person's original place of residence and giving a legitimate citizen a secured national identity, now appear to be manipulated because of a twisted economy of documents and a related polity.

Second, as a corollary to the first point, the electoral rolls in the context of Assam have assumed the status of not just an end to this fuzzy politicisation, but also a means of achieving the process. Using the electoral rolls 'infiltrated' by the ineligible voters, elections have been won and lost. On the promise of cleaning up the same electoral rolls, political parties have successfully gained momentum and succeeded in fulfilling their own definite agenda. The parties who use the demand for a clean roll have been on the winning side of the popular mandate since the 1970s. And in the 2000s, following a changed political climate, faces from the same winning group are now demanding clean rolls on one hand, while on the other hand ensuring that a significant number of illegals are included in the rolls through the CAA because of their religious identity. This shift in the demand for 'clean rolls' by those advocating Hindutva ("Hindu-ness") demonstrates effectively how the two-staged, double-layered politicisation of the electoral rolls has worked in recent times.

As I have already demonstrated, the status of the electoral rolls in Assam, where they occupy the centre stage in defining the course of local politics, is undeniable. New political parties and organisations have been formed over reclaiming the rolls from prolonged foreign infiltration. But all of this politicking has reduced the rolls' legitimacy in determining the democracy quotient, as indicated by popular perception and voter trust in the infallible nature of the rolls. In addition, election officers point out how the rolls are of utmost importance, but also require additional documentary evidence to confirm the voters' citizenship. Thus, the electoral rolls are of utmost importance yet not fully trustworthy. Again, the rolls are at once active sites for forging cross-

border complicities as well as a means to modify the demographic nature of the electorate. The fallible nature of the electoral rolls in Assam casts doubt not only on the 'fairness' of the election process, but also on other stakeholders who are squarely involved in the process of drafting, checking and publishing these rolls. Electoral rolls are undoubtedly one of the most important signifiers of a resident's suffrage rights and tampering with them automatically also means tampering with democratic participation.

In addition, it cannot be said that the electorate itself is unaware of this politicisation and is thus aloof and/or oblivious. The lower-class Bengali speaker from Silchar I quoted at the beginning of this paper not only admitted to being aware of this, but also questioned the legitimacy of it all. Nonetheless, the electorate of Assam continues to be engulfed by the haunting spectre of the infiltrating *ghusˈpeṭhiẏe*, allowing stakeholders to reap benefits out of the chaotic situation. The way these rolls have been continuously politicised, played with and usurped for decades is simply an expression of their ever-rising centrality in determining the political future of Assam. Moreover, the reluctant process of cleaning up the rolls, despite strong popular support for it, indicates that there is currently no foreseeable end to the two-pronged politicisation of the rolls. Rather, the multifaceted discourse of illegal immigration and the inclusion of foreign illegals in the voter lists meant for genuine Indian citizens is what keeps the electoral politicking in Assam alive. And the part played by the electoral rolls in all of this is that of both an integral means and a lucrative end, but not a trusted entity, in the existing popular perception.

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